



RESELLER AGREEMENT

THIS RESELLER AGREEMENT (this "**Agreement**") is made as of the 6th day of August 2020 (the "**Effective Date**") by and between Brivo Systems LLC, a Delaware limited liability company with an address at 7700 Old Georgetown Road, Suite 300, Bethesda, Maryland 20814 ("**Brivo**"), and Dynamic Security Technologies, Inc., a Corporation with an address at 28301 Industrial Blvd Suite B, Hayward, California 94545 ("**Reseller**").

BACKGROUND

Brivo designs, manufactures, sells, licenses and distributes products and services which provide security management products and solutions. Reseller is regularly engaged in and has expertise in the marketing, sale, lease, license, distribution and support of security management products and solutions. Brivo maintains a network of resellers to resell its security management products and solutions and Reseller desires to resell such products and solutions to End Users (as hereinafter defined) in the Territory (as hereinafter defined), all in accordance with and subject to the terms and conditions of this Agreement.

AGREEMENT

Accordingly, for and in consideration of the mutual promises and covenants herein contained, and for other good and valuable consideration, the receipt and sufficiency of which the parties hereby acknowledge, Brivo and Reseller agree as follows:

1. Defined Terms. Certain capitalized terms used in this Agreement are defined in the list of "Defined Terms" attached hereto as Exhibit A. Other capitalized terms are defined elsewhere in this Agreement.

2. Purchase and Sale of Products.

(a) Appointment and License. Subject to the terms and conditions of this Agreement, Brivo hereby appoints Reseller as its non-exclusive reseller of the Products throughout the Territory during the Term. Subject to the terms and conditions of this Agreement, Brivo grants Reseller a limited, non-exclusive, non-assignable right and license during the Term and throughout the Territory to: (i) market, promote, offer, demonstrate, resell and distribute to End Users, and install, service and maintain, the Hardware, (ii) market, promote, offer, demonstrate, resell, and distribute Site Licenses and subscriptions for Subscription Services to End Users, and (iii) provide first-line technical support services for the Products to End Users. Reseller will not, directly or indirectly, resell Products or licenses therefor outside of the Territory, unless approved in advance in writing by Brivo. Nothing in this Agreement gives Reseller any rights with respect to other products that Brivo may develop, manufacture, or market in the future.

(b) Purchase and Sale of Products. Subject to the terms and conditions of this Agreement, during the Term, Brivo agrees to sell and/or license to Reseller the Products ordered by Reseller pursuant to orders accepted by Brivo in accordance with Section 4 below.

(c) No Exclusivity. All rights granted to Reseller under this Agreement are non-exclusive. Brivo reserves the right to market, promote, distribute, sell and license the Products within and outside the Territory, and nothing in this Agreement will be construed as limiting in any manner Brivo's right to appoint other distributors, resellers, licensees or agents within and outside the Territory.

(d) Discontinuation and Modification of Products. Brivo may, in its sole discretion, discontinue the sale, license and/or support of any of the Products and any parts/accessories therefor (except where continued availability is required by law) and make such changes affecting their form, fit or function as Brivo, in its sole discretion, determines. Brivo will use commercially reasonable efforts to provide notice to Reseller of material Product changes at least thirty (30) days in advance but without incurring any liability to Reseller therefor. For Products that are eligible for a warranty return pursuant to Brivo's then-current Warranty Policy and that are both discontinued and no longer operational, Brivo will use commercially reasonable efforts to offer a replacement option at no additional charge to the Reseller. The Warranty Period for any replacement Product will end on the same date as the original Warranty Period for the replaced Product. If Brivo is unable to provide a replacement option for such Products, Reseller will be entitled to a refund equal to 2.5% of the original cost paid by Reseller to Brivo multiplied by the number of months remaining in the original Warranty Period. Brivo does not control the discontinuation of, or modifications or changes to, Third-party Hardware.

(e) End User Trial Equipment. Brivo may from time to time, in its sole discretion, periodically loan Products to Reseller for trial and evaluation purposes with its prospective End Users under conditions stipulated in the Reseller Program Guide.

(f) Reseller Demonstration Equipment. Brivo may from time to time, in its sole discretion, make available for purchase by Reseller certain Products for demonstration purposes under conditions stipulated in the Reseller Program Guide.

(g) Brivo APIs. If requested by Reseller, Brivo will make available to Reseller the Brivo API Suite, or other APIs as may come available, subject to Brivo's then-current terms and conditions of use therefor.

(h) Compliance with Laws. Brivo will use commercially reasonable efforts to ensure that the Products are manufactured, certified, marked and packaged in compliance with applicable laws in the Territory. In the event that a Product is found to be out of compliance with a law in place in the Territory at the time the Product was sold, Brivo's sole and exclusive liability will be (at Brivo's option) to either repair or replace any noncompliant Product or credit Reseller's account for the original purchase price of any noncompliant Brivo Hardware Product and any unused pre-paid Subscription Services.

(i) Reseller Certification. Brivo offers various product certifications for its Resellers. Resellers agrees to maintain Product certifications as stipulated in the Reseller Program Guide.

3. Purchase Prices.

(a) Amount. Brivo will sell and/or license the Products to Reseller at a price equal to their respective standard list prices as set forth in the then-current Price List less the Reseller's then applicable Discount Level. Brivo's Price List is available to Reseller at the Brivo Partner Portal, and Reseller will keep itself up-to-date throughout the Term with respect to Brivo's current standard list prices.

(b) Taxes. The Price List prices are exclusive of all taxes, including sales, use, excise or value added taxes where applicable. Upon presentation of invoices by Brivo, Reseller will pay any and all such taxes imposed or levied by any government or agency. Any claimed exemption from such taxes must be supported by proper documentary evidence delivered to Brivo.

(c) Changes to Price List. Brivo will have the right to change its standard list prices for the Products at any time during the Term. Such changes will become effective thirty (30) days after delivery of written notice thereof to Reseller. For purposes of changes in Brivo's standard list prices, Reseller will be deemed to have received written notice of such changes in accordance with this Agreement when such changes are posted to the Brivo Partner Portal.

(d) Resale Prices. Reseller is free to determine the price at which Reseller resells the Products to End Users. Reseller will be solely responsible for collecting any payment from its End Users and Reseller's payment obligations to Brivo will not be subject to Reseller's collection of payment from End Users.

4. Orders. In addition to activating Brivo Subscription Service accounts in accordance with Section 6(c) below, Reseller may place orders for the Products hereunder by submitting the required order information in form and substance acceptable to Brivo in its sole discretion, including but not limited to submission of a Purchase Order and electronic orders including those submitted via EDI, Brivo's online storefront and the Brivo platform. No order will be binding upon Brivo unless and until accepted by Brivo. The terms and conditions of this Agreement are hereby incorporated by reference into each order submitted by Reseller hereunder. Nothing contained in any order by Reseller will in any way modify or add to the terms of this Agreement. ANY TERMS OR CONDITIONS SUBMITTED ON ANY FORM BY RESELLER THAT DIFFER FROM OR ALTER THE TERMS AND CONDITIONS STATED HEREIN ARE SPECIFICALLY REJECTED BY BRIVO. BRIVO'S FAILURE TO OBJECT TO PROVISIONS CONTAINED IN ANY COMMUNICATION FROM RESELLER WILL NOT BE A WAIVER OF THE PROVISIONS HEREOF. Special orders or custom orders are, once made, NOT MODIFIABLE, CANNOT BE CANCELLED, and are NON-REFUNDABLE.

5. Shipment and Delivery.

(a) General. Brivo generally ships orders via ground shipping methods at Brivo's option within five (5) business days from the time the order is accepted by Brivo. All shipments will be F.O.B. Brivo's factory, warehouse or distribution location and title and liability for loss or damage thereto will pass to Reseller upon Brivo's delivery of the goods to a carrier for shipment to Reseller. Any loss or damage thereafter will not relieve Reseller from any obligation hereunder. Reseller is responsible for all costs of freight, insurance and transportation and for all import duties, taxes, and any other expenses incurred or licenses or clearance required at port of entry and destination for all shipments to Reseller from Brivo.

(b) Shipping Dates Approximate. Scheduled or stipulated shipping dates are approximate and based upon prompt receipt of all necessary information from Reseller. Brivo will not be liable for any loss or expense, whether by way of contract or tort (consequential or otherwise) incurred by Reseller if Brivo fails to meet the specified estimated delivery dates.

(c) Installments; Substitute Goods. Brivo may deliver individual Products within a single order in installments or separate shipments. In order to fulfill Reseller orders efficiently, Third-party Hardware may be dropped shipped from respective manufacturers in addition to Products shipped separately from Brivo. Brivo may modify the specifications of the Products, and substitute goods manufactured to such modified specifications for those Products specified herein, provided such substitute goods substantially conform to the requirements of this Agreement.

6. Acceptance.

(a) Hardware. Acceptance of the Hardware will be deemed to occur upon delivery to Reseller, but such acceptance will not affect Reseller's rights under the Warranty Policy (as hereinafter defined).

(b) Site Licenses. Acceptance of Brivo Onsite and any other Site Licenses will be deemed to occur upon delivery to Reseller.

(c) Subscription Services. Activation of a Brivo Subscription Service account in accordance with the terms and conditions of this Agreement (including Exhibit C) and any other terms and conditions established therefor by Brivo is an order per Section 4 above and will constitute acceptance thereof.

7. Terms and Method of Payment. Brivo may, in its sole and absolute discretion, extend trade credit terms to Reseller. Where Brivo has extended credit to Reseller, terms of payment will be net thirty (30) days from the date of invoice. The amount of credit extended to Reseller and/or terms of payment may be changed, or credit suspended or withdrawn by Brivo, at any time. Where Brivo has not extended, or has suspended or withdrawn, credit to Reseller, orders must be paid either cash-in-advance or by credit card at the time of order or upon renewal for Subscription Services. Reseller is required to maintain good financial standing with Brivo. Amounts remaining unpaid more than thirty (30) days from date of invoice will bear interest at the lesser of 1½% per month or the maximum rate permitted by law. If Reseller fails to make full payment within sixty (60) days of any invoice, Brivo may (in addition to any other remedies available hereunder or at law or equity): (i) suspend performance hereunder in whole or in part, and/or (ii) terminate service to any and all Reseller End User accounts for Subscription Services for which invoices remain unpaid. If Hardware is delivered in installments and Brivo invoices separately for each installment, Reseller will pay each invoice net thirty (30) days from the date of each invoice in accordance with Reseller's applicable credit terms. All payments due hereunder will be made without setoff or deduction of any kind.

8. Reseller's Obligations.

(a) Promotion of Products. Reseller will actively promote and resell the Products in the Territory during the Term and will install and service such Products in the Territory to the satisfaction of Brivo. Reseller will promptly establish and maintain during the Term an adequate number of full-time salespersons, installers and service technicians, duly trained and competent in such work, so that the marketing, installation and service of the Products will be at all times of the highest standard. During the Term, Reseller will at all times adhere to any then-current Brivo Reseller Certification Programs and Reseller Program Guides.

(b) Leads Provided by Brivo. In connection with leads provided by Brivo to Reseller, Reseller will not offer or supply competitive products unless authorized in writing by Brivo, and then only for that particular lead.

(c) Reseller's Responsibilities. Reseller will pay all costs and expenses of whatever nature incurred by Reseller in connection with the fulfillment of its obligations hereunder, including, but not limited to, any commissions or payments made to any sales representatives or employees engaged or employed by Reseller and any expenses incurred in connection with the fulfillment of such obligations. Reseller will purchase, resell, license, distribute, install and service the Products in its own name and on its own behalf and will carry on its business at its own exclusive risk. Reseller will not be and will not hold itself out as, in any manner whatsoever, an agent of Brivo.

(d) Preservation of Brivo Goodwill. Reseller agrees to conduct business in a manner that reflects favorably at all times on the goodwill and reputation of Brivo and the Products, and agrees not to engage in deceptive, misleading or unethical practices. Reseller will not make any representations, warranties or guarantees with respect to the Products that are inconsistent with those made by Brivo in its published literature. Because of the potential disruption that could occur to an End User's operations if access to or use of the Products is suspended or terminated, when an End User is current with respect to its payment obligations for the Products and is in compliance with the Terms of Use, Brivo's policy is to continue the provision of such Products. Accordingly, if an End User is current with respect to its obligations to pay Reseller for Products resold by Reseller hereunder, Reseller agrees not to suspend or terminate such End User's use of or access to such Products due to a disagreement with the End User not related to the Products, but nothing in this Section constitutes or will be deemed to be a waiver by Reseller of its rights to pursue damages from an End User.

(e) End User Account Portability Rights. So long as an End User is in material compliance with its contractual obligations to Reseller (including, without limitation fulfilling the committed contractual term of any subscription to the Products), an End User has the right to transfer its account for the Products to another authorized Brivo reseller or partner of such End User's choice, and Reseller (i) hereby consents to the transfer of such End User's account for the Products to such other Brivo reseller or partner, (ii) will take no action to prevent or delay such transfer and (iii) will reasonably cooperate with the End User and Brivo in connection with any such transfer. No such account transfer or other action taken by Brivo in connection with effecting such an account transfer will constitute interference (tortious or otherwise) with Reseller's relationship with the End User (prospective or otherwise). Reseller acknowledges and agrees that End Users are free to conduct business with other authorized Brivo resellers and partners, and End Users may conduct business with multiple authorized Brivo resellers or partners at the same time. If any End User requests Brivo to effect a transfer of its account for the Products from Reseller to a different authorized Brivo reseller or partner, Brivo will notify Reseller. If there is a disagreement between the Reseller and the End User concerning any unsatisfied material contractual obligations owed by the End User to Reseller, then Reseller will cooperate in good faith with Brivo

and the End User in an attempt to address and resolve any such disagreement in a prompt manner. For the avoidance of doubt, nothing in this Section is intended to permit an End User to terminate the term of any subscription for the Products early, in breach of the terms of its agreement with Reseller.

(f) Distribution of Subscription Services. Reseller will resell subscriptions for Subscription Services pursuant to the then-current terms of use therefor in the form provided by Brivo, as the same may from time to time be modified in the discretion of Brivo (as applicable, the “**Terms of Use**”). During the Term, Brivo’s then-current Terms of Use will be available to Reseller and End User within the Subscription Service or at the Brivo Website, and Reseller will keep itself up-to-date throughout the Term with respect thereto. The distribution of Subscription Services will also be subject to the terms and conditions of Exhibit C. Reseller represents and warrants to Brivo that Reseller will resell the Products pursuant to written agreements with End Users that contain limitations of liability, exclusive remedy and third-party indemnification provisions in favor of Reseller and its suppliers and licensors (including Brivo) that are consistent with those set forth in this Agreement.

(g) Distribution of Site Licenses. Reseller will resell licenses for Site Licenses pursuant to the then-current End User License Agreement therefor in the form provided by Brivo, as the same may from time to time be modified in the discretion of Brivo (each a “**EULA**”). During the Term, Brivo’s then-current EULA will be available to Reseller at the Brivo Partner Portal, and Reseller will keep itself up-to-date throughout the Term with respect thereto.

(h) Distribution of Hardware. Hardware is authorized for use only with Brivo Site Licenses or Subscription Services resold, installed and supported by Reseller. Accordingly, Reseller will resell Hardware only for use with such Products. Brivo grants Reseller a non-exclusive and, except as specifically provided below, non-transferable right-to-use license (“**RTU License**”) for any software that is embedded or installed in the Hardware and for which no separate price is stated in the Price List (“**Firmware**”). When reselling Hardware in accordance with the terms and conditions of this Agreement, Reseller may sublicense the RTU License to End Users. The RTU License: (i) will be perpetual for Firmware embedded in Hardware if and when Reseller pays to Brivo the full purchase price for that item in accordance with the terms and conditions of this Agreement, and (ii) will be valid for the term of a subscription account to the applicable Subscription Service for the period in which the subscription is valid and will expire upon termination of such subscription account.

(i) First-line Technical Support. Reseller will provide End Users first-line technical support services relating to the Products provided by Reseller to End Users. First-line technical support services to be provided by Reseller include, without limitation: (i) receiving requests for assistance and support from End Users, (ii) gathering the necessary information from End Users about the Products in use, the nature of the request for assistance and support and details relating to any reported problem, (iii) reviewing Documentation and other reference materials made available to Reseller in an attempt to identify the source or cause of any reported problem, (iv) communicating with Brivo regarding any reported problem and keeping Brivo informed on the status thereof, (v) attempting to provide End Users a solution or work-around, (vi) promptly reporting back to End Users on progress, (vii) coordinating with and passing through to End Users any second-line technical support provided by Brivo to Reseller and (viii) maintaining Firmware to Brivo’s then-current recommendations. In no event may an End User contact Brivo for direct assistance or support without Brivo’s prior written consent. For the avoidance of doubt, the consistent and ongoing failure by Reseller to satisfy its first-line technical support obligations will be a material breach of this Agreement by Reseller.

(j) Administration of End User Accounts. Reseller will administer each End User account for the Products in accordance with all lawful instructions and directions from the applicable End User, in accordance with Reseller’s agreement with the End User.

(k) Compliance with Export Control Laws. The license and distribution of the Products hereunder is subject to the export control laws of the United States which may include, without limitation, the U.S. Export Administration Regulations, the Trading With the Enemy Act, the International Emergency Economic Powers Act, the Arms Export Control Act and regulations promulgated by the U.S. Department of the Treasury’s Office of Foreign Assets Control (“**OFAC**”), as amended from time to time (collectively, the “**Export Control Laws**”). All actions taken by Reseller in furtherance of fulfillment of this Agreement will be in compliance with applicable Export Control Laws. Reseller will not export, re-export or license any Product to any parties located in countries prohibited under U.S. embargoes or sanctions programs maintained by the OFAC or otherwise prohibited under the Export Control Laws. In addition, Reseller will not export, re-export or license any Product to any parties that are named as a “Specially Designated National” or “Blocked Person” as designated by the OFAC (which is currently published under the Internet address <http://www.treas.gov/offices/eotffc/ofac>). Reseller further agrees that it will cooperate fully with Brivo in furnishing Brivo with all necessary information and certificates, including End User certificates, that Brivo may require in order to obtain licenses, comply with export recordkeeping requirements and otherwise comply with the Export Control Laws.

(l) Compliance with Laws Generally. Reseller will comply with all laws, rules and regulations applicable to Reseller and the performance of Reseller’s obligations under this Agreement. Reseller will obtain and maintain in full force and effect all applicable permits and/or licenses necessary to comply with all applicable requirements of law related to the conduct of its business and affairs and the purchase, receipt, sublicense and resale of the Products, as applicable, and the installation, use, operation, and support thereof.

(m) Reseller Services. Reseller warrants that all services that it provides related to resale of the Hardware (including installation, service and warranty support) and the fulfillment of its first-line technical support service obligations as an authorized Brivo reseller will be provided in a timely, professional and workmanlike manner.

9. Training and Technical Support.

(a) Training. Brivo will provide its standard initial sales and technical training for Reseller in accordance with the then-current Brivo Reseller Certification Program. Further training arranged specifically for Reseller, or further training for Reseller certification, will be charged to Reseller at Brivo's then-current rates for training services, including reimbursement for instructor's travel and living costs if not held at Brivo's designated site.

(b) Technical Support. Subject to the terms and conditions of this Agreement, during the Term Brivo will provide Reseller, free of additional charge, technical helpdesk and email support for the Products during Brivo's then-current standard technical support hours in effect in the applicable region.

10. Limited Warranty.

(a) Warranty. Any warranty with respect to the Brivo Hardware is as provided in Brivo's then current Warranty and Return Policy (as hereafter amended from time to time, the "**Warranty Policy**"). The Reseller acknowledges receipt of a copy of the Warranty Policy in effect as of the Effective Date prior to execution of this Agreement. The then-current Warranty Policy thereafter will be available to Reseller through various means, including at the Brivo Partner Portal and in the Reseller Program Guide. Brivo does not warrant Third-party Hardware or third-party services. For Third-party Hardware or third-party services, the warranty (if any) of the original manufacturer or service provider applies.

(b) Site Licenses and Subscription Services. Any warranty with respect to the Site Licenses and Subscription Services resold by Reseller to End Users will run directly from Brivo to the End User, as set forth in the applicable EULA or Terms of Use. Reseller will not make: (i) any representation or warranty whatsoever on behalf of Brivo, (ii) any representation or warranty concerning the quality, performance or other characteristics of the Products other than those which are consistent in all respects with, and do not expand the scope of, the warranties provided by Brivo, (iii) any commitment to modify any Brivo Applications, or (iv) any statement, representation or act indicating that Reseller owns or otherwise has any rights in or to the Products. Reseller hereby agrees to indemnify and hold Brivo harmless from and against any damage or expense (including reasonable attorneys' fees) resulting from any representation, warranty or commitment made by Reseller in violation of this Section 10(b).

(c) Disclaimers. Brivo does not warrant that: (i) the Products will meet Reseller's or any End User's requirements, (ii) the Brivo Applications will operate in combination or be compatible with other hardware or software not supplied by Brivo, except as expressly approved in writing by Brivo, or (iii) operation of the Brivo Applications or Brivo Subscription Services will be uninterrupted or error free. Further, Reseller acknowledges and agrees that the Products do not cause and cannot eliminate occurrences of the events they are intended to detect or avert, including unauthorized access to physical premises, robberies, burglaries or similar incidents. EXCEPT FOR THE LIMITED WARRANTIES ABOVE, THE PRODUCTS AND DOCUMENTATION ARE PROVIDED "AS IS". THE LIMITED WARRANTIES ABOVE ARE EXCLUSIVE AND IN LIEU OF ALL OTHER WARRANTIES, CONDITIONS OR TERMS, WHETHER EXPRESS OR IMPLIED BY STATUTE, TRADE USAGE OR COURSE OF DEALING OR OTHERWISE, INCLUDING, WITHOUT LIMITATION, THE IMPLIED WARRANTIES OF MERCHANTABILITY, SATISFACTORY QUALITY, FITNESS FOR A PARTICULAR PURPOSE, NONINFRINGEMENT, OR TITLE. THE LIMITED WARRANTIES ABOVE DO NOT COVER NON-DEFECT DAMAGE, DAMAGE CAUSED BY IMPROPER INSTALLATION, OPERATION OR CARE (INCLUDING, BUT NOT LIMITED TO ABUSE, MISUSE, FAILURE TO PROVIDE REASONABLE AND NECESSARY MAINTENANCE, OR ANY ALTERATIONS OR MODIFICATIONS TO THE PRODUCT), LABOR CHARGES FOR REMOVING OR REINSTALLING A REPAIRED OR REPLACED ITEM, OR REPLACEMENT BATTERIES.

11. Term and Termination.

(a) Term. Unless sooner terminated pursuant to Sections 11(b)-(d) below, the initial term of this Agreement will commence on the Effective Date and will continue thereafter for a period of one (1) year (the "**Initial Term**"). Following the expiration of the Initial Term, this Agreement will be automatically renewed for consecutive one-year periods (each a "**Renewal Term**") on each anniversary of the Effective Date, unless either party notifies the other in writing at least sixty (60) days prior to the expiration of the Initial Term or then-current Renewal Term, as applicable, of its intent not to renew this Agreement. The Initial Term and any Renewal Terms are collectively referred to herein as the "**Term**."

(b) Termination for Material Breach. Either party may immediately terminate this Agreement effective upon delivery of written notice to the other party if such other party materially breaches this Agreement and fails to cure such breach within a period of thirty (30) days after delivery of written notice thereof.

(c) Termination for Insolvency. Either party may immediately terminate this Agreement effective upon delivery of written notice to the other party if such other party: (i) admits in writing its inability to pay its debts generally as they become due, (ii) makes a general assignment for the benefit of creditors, (iii) institutes proceedings to be adjudicated a voluntary bankrupt, or consents to the filing of a petition of bankruptcy against it, (iv) is adjudicated by a court of competent jurisdiction as being bankrupt or insolvent, (v) seeks reorganization under any bankruptcy act, or consents to the filing of a petition seeking such reorganization, or (vi) has a decree entered against it by a court of

competent jurisdiction appointing a receiver, liquidator, trustee, or assignee in bankruptcy or in insolvency covering all or substantially all of its property or providing for the liquidation of its property or business affairs.

(d) Termination by Brivo. Without limiting the generality of the foregoing, Brivo may terminate this Agreement at any time effective upon delivery of written notice to Reseller if Reseller: (i) consistently fails to provide commercially reasonable service (including, without limitation, first-line technical support services) to End Users, (ii) fails to adhere to any material terms in the then-current Brivo Reseller Certification Program and/or Reseller Program Guide, or (iii) fails to make any payment due hereunder within sixty (60) days of invoice.

(e) Effects of Termination. If this Agreement expires or is terminated for any reason, then (i) upon termination Reseller will cease to act as a reseller of the Products (other than supplying replacement Hardware and continuing to provide Subscription Services to End Users who have active Brivo Product accounts resold by Reseller hereunder in effect at the time of expiration or termination of this Agreement in accordance herewith), and all rights and licenses of Reseller hereunder (except as set forth in this Section 11(e)) will terminate, and (ii) following expiration or termination: (A) all Site Licenses resold by Reseller in accordance with the terms and conditions of this Agreement prior to the effective date of termination (and all RTU Licenses granted in connection therewith) shall survive termination of this Agreement, subject to the terms and conditions of this Agreement and the EULA and (B) all subscriptions for Subscription Services sold by Reseller in accordance with the terms and conditions of this Agreement prior to the effective date of termination (and all RTU Licenses granted in connection therewith) will remain in effect for the longer of: (x) up to a minimum of twenty-four (24) months following the effective date of termination of this Agreement or (y) as mutually agreed by Reseller and Brivo, in each case subject to the terms and conditions of this Agreement (including payment terms) and the Terms of Use. Reseller shall have the right to continue providing first-line technical support services to such End Users during the applicable survival period, subject to the terms and conditions of this Agreement.

(f) Survival. Notwithstanding the termination or expiration of this Agreement, it is acknowledged and agreed that those rights and obligations which by their nature are intended to survive such termination or expiration will survive, including without limitation Sections 1, 7, 10(c), 11(e) and (f), and 12-19 (inclusive).

12. Indemnification.

(a) Indemnification by Brivo. Subject to the provisions of Sections 12(b) and (c) below, Brivo will indemnify Reseller and hold Reseller harmless against any and all direct damages finally awarded against Reseller by a court of competent jurisdiction or agreed to in a written settlement agreement signed by Brivo arising out of any claim by a third party that any Product directly infringes any U.S. copyright or trademark, or misappropriates any trade secret, of such third party.

(b) Conditions. Brivo's indemnification obligations under Section 12(a) are subject to the following conditions: (i) Reseller will provide Brivo with prompt written notice of any claim, (ii) Reseller will permit Brivo to assume and control the defense and settlement of any claim at Brivo's cost and expense, (iii) Reseller will not prejudice the defense of the claim, and (iv) Reseller will provide Brivo with such assistance, documents, authority and information as it may reasonably require in relation to the claim and defense or settlement thereof.

(c) Exceptions. Brivo will have no liability to Reseller under Section 12(a) for any claim that: (a) arises out of any unauthorized use, reproduction, or distribution of any Product, (b) arises out of any modification or alteration of any Product by anyone other than Brivo, (c) arises out of the use of any Product in combination with any other software or hardware not approved in writing by Brivo, or (d) with respect to any Brivo Applications, could have been avoided by use of the then-current version or release of such Brivo Applications.

(d) Disruption of Use. In addition, if any Brivo Application becomes, or in Brivo's opinion is likely to become, the subject of an infringement or misappropriation claim that may disrupt End User's use of the Brivo Application, Brivo may, at its own expense and option, elect to either: (i) procure the right for the End User to continue using the Brivo Application in accordance with the provisions of this Agreement, the applicable EULA or the Terms of Use, (ii) make such alterations, modifications or adjustments to the Brivo Application so that the infringing Brivo Application becomes non-infringing without incurring a material diminution in performance or function, (iii) replace the Brivo Application with a non-infringing substantially similar substitute, or (iv) if neither (i), (ii) nor (iii) can be achieved after the exercise by Brivo of commercially reasonable efforts under the circumstances, terminate the license or service involving the affected Brivo Application and refund to Reseller an amount equal to: (A) in the case of a terminated Site License, all amounts paid by Reseller to Brivo as license fees with respect to the affected Brivo Application, less an amount equal to depreciation of such license fees calculated on a three-year straight-line basis from the delivery or commencement date and (B) in the case of a terminated Subscription Service, all prepaid subscription fees in respect of the portion of the subscription period remaining following termination.

(e) Sole Remedies. SECTIONS 12(a)-(d) STATE BRIVO'S ENTIRE LIABILITY, AND RESELLER'S SOLE REMEDIES, FOR INFRINGEMENT OF THIRD-PARTY INTELLECTUAL PROPERTY RIGHTS IN RELATION TO THE PRODUCTS.

(f) Indemnification by Reseller. Reseller will indemnify, defend, and hold Brivo harmless against any and all damages, liabilities, costs and expenses (including, without limitation, reasonable attorneys' fees) suffered or incurred by Brivo in connection with any third-party suit, action, claim or proceeding arising out of or in connection with: (i) Reseller's failure to comply with applicable laws, rules, or regulations, (ii) Reseller's breach of this Agreement or

Reseller's breach or alleged breach of any agreement between Reseller and an End User, (iii) the negligence or intentional misconduct of Reseller or its employees and agents, including, without limitation, faulty installation of Products or (iv) any dispute between Reseller and an End User relating to Reseller's access to or use, suspension or termination of the End User's Product account. Furthermore, Reseller acknowledges and agrees that Brivo must rely on the accuracy and validity of Reseller's directions to Brivo regarding the suspension or termination of End User Product accounts. Accordingly, Reseller will indemnify, defend, and hold Brivo harmless against any and all damages, liabilities, costs and expenses (including, without limitation, reasonable attorneys' fees) suffered or incurred by Brivo in connection with any suit, action, claim or proceeding brought by an End User arising out of or in connection with Brivo's compliance with Reseller's directions to Brivo regarding the suspension or termination of any End User Product account.

13. Limitation of Liability.

(a) No Consequential Damages. UNDER NO CIRCUMSTANCES WILL BRIVO BE LIABLE FOR CONSEQUENTIAL, INCIDENTAL, SPECIAL, INDIRECT, OR COVER DAMAGES, OR LOSS OF PROFITS HOWSOEVER ARISING IN CONNECTION WITH THIS AGREEMENT OR THE USE, OR INABILITY TO USE, ANY PRODUCT, EVEN IF BRIVO HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGE.

(b) Cap on Liability. BRIVO'S AGGREGATE CUMULATIVE LIABILITY FOR DAMAGES (REGARDLESS OF THE FORM OF ACTION, WHETHER IN CONTRACT, TORT OR OTHERWISE) WILL IN NO EVENT EXCEED THE AMOUNT OF FEES PAID BY RESELLER UNDER THIS AGREEMENT DURING THE 24-MONTH PERIOD IMMEDIATELY PRECEDING THE OCCURRENCE OF THE CIRCUMSTANCE OR EVENT GIVING RISE TO LIABILITY AND, IF SUCH DAMAGES RELATE TO PARTICULAR PRODUCTS, SUCH LIABILITY WILL BE LIMITED TO THE FEES PAID FOR SUCH PRODUCTS DURING SUCH 24-MONTH PERIOD.

(c) End User Content. BRIVO IS NOT RESPONSIBLE FOR THE CONTENT OF ANY AUDIOVISUAL RECORDINGS RECORDED WITH THE USE OR AID OF, OR STORED ON OR WITHIN, THE PRODUCTS. RESELLER ACKNOWLEDGES AND AGREES THAT THE PRODUCTS ARE PROHIBITED FROM USE IN CONNECTION WITH ANY OFFENSIVE, SEXUAL, DEFAMATORY, OR ILLEGAL CONDUCT.

(d) THE LIMITATIONS, EXCLUSIONS AND DISCLAIMERS SET FORTH IN THIS AGREEMENT WILL APPLY TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, EVEN IF ANY REMEDY FAILS OF ITS ESSENTIAL PURPOSE.

14. Confidentiality.

(a) Previous Agreements. If the parties have previously signed any agreements governing the disclosure of Confidential Information, those prior agreements will remain in full force and effect to the extent they apply prior to the date of this Agreement or relate to subject matter not covered by this Agreement.

(b) Confidentiality and Non-use Obligations. The Receiving Party will keep confidential all Confidential Information of the Disclosing Party during the Term of this Agreement and for a period of five (5) years following termination or expiration of this Agreement, and will only use such Confidential Information in connection with the performance of this Agreement. Each party will protect the other's Confidential Information from unauthorized distribution or use using the same degree of care it uses to protect its own like information, but no less than a reasonable degree of care. All Confidential Information supplied by the Disclosing Party to the Receiving Party pursuant to the provisions of this Agreement, together with all copies thereof, will remain the property of the Disclosing Party. Confidential Information identified by the Disclosing Party as a trade secret will be kept in confidence by the Receiving Party during the Term of this Agreement and thereafter for so long as such Confidential Information constitutes a trade secret under applicable law.

(c) Equitable Relief. Each party acknowledges and agrees that, due to the unique nature of the Confidential Information, there can be no adequate remedy at law for breach of this Section and that such breach would cause irreparable harm to the non-breaching party; therefore the non-breaching party will be entitled to seek immediate injunctive relief, in addition to any remedies otherwise available at law or under this Agreement.

15. Protection of Data.

(a) Applicable Policy. Brivo's management of privacy and security is subject to Brivo's publicly available privacy and security policies (the "**Privacy Policies**") as published on Brivo's website (www.brivo.com) and the applicable Product Terms of Use, as the same may be updated from time to time.

(b) Account Data. The Reseller understands that Brivo is responsible for the storage of Account Data including all electronic data, records and information submitted and recorded in the course of conducting Brivo's business and providing its Services.

(c) Reseller Responsibilities. The Reseller understands and agrees that, because of its ability to access the Account Data of End Users with which Reseller has an agreement regarding the resale of Brivo Products, Reseller must maintain appropriate technical and organizational security measures to protect Account Data from unauthorized access, modification, disclosure, use or loss. Reseller agrees to obtain permission from its End User's for any access Reseller has to Account Data. Reseller agrees to destroy or return all Account Data in Reseller's possession or under its control to the End User at the end of the provision of services, at the End User's discretion. To the extent that Reseller actions

S-CON-CTL-BRIVO NA FORM RESELLER AGREEMENT V200527 Page: 7 Dynamic Security Technologies, Inc.

results in a data breach, Reseller acknowledges Reseller is solely responsible for complying with applicable data breach notification laws and fulfilling any notification obligations without undue delay.

(d) Brivo Rights. The Reseller acknowledges and grants to Brivo the right to modify, suspend or terminate Reseller access to Account Data when specifically requested by End Users or in cases where Brivo can reasonably conclude that such continued access to Account Data by Reseller is not authorized by the End User.

16. Intellectual Property Rights.

(a) Ownership. All Intellectual Property Rights and other rights relating to the Products and any modifications thereof or Derivative Works based in whole or in part thereon (whether or not authorized) will at all times be the exclusive property of Brivo or its licensors, and all use of such rights will accrue to the benefit of Brivo. Reseller will not challenge Brivo's title to such intellectual property, including, without limitation, the Brivo Marks, oppose any registration thereof, or challenge the validity or enforceability of this Agreement. Furthermore, Reseller will not register, nor attempt to register, any trade name, trademark, service mark, design or domain name which, in whole or in part, incorporates or is confusingly similar to any of the Brivo Marks, without the prior written consent of Brivo. Nothing contained in this Agreement will constitute or be construed as a transfer of ownership of any of the Intellectual Property Rights of Brivo or its licensors or to otherwise give Reseller any proprietary rights to any of the Intellectual Property Rights of Brivo or its licensors. Reseller will have no right, title or interest in the Products except as expressly set forth in this Agreement.

(b) Restrictions. Reseller will not (nor will it permit any third party under its control to): (i) copy or manufacture the Brivo Applications or any portion thereof, (ii) translate, modify, adapt, enhance, extend, decompile, disassemble, reverse engineer or otherwise attempt to derive the source code of the Brivo Applications by any means whatsoever, (iii) except as authorized in connection with a Brivo Subscription Service, use the Brivo Applications to provide any hosting facility management, bureau service, or Software as a Service (SaaS) or otherwise use the Brivo Applications to process the data of any third party, (iv) rent or sub-lease any portion of the Brivo Applications or Subscription Service for the purposes of establishing a service in competition with Brivo, or (v) modify, or create Derivative Works based on or including (in whole or in part), the Brivo Applications.

(c) Notice of Breach. Reseller will promptly notify Brivo of any and all material breaches of any Terms of Use or EULA that may come to Reseller's attention, and Reseller will assist Brivo, at Brivo's expense, in all steps reasonably necessary to terminate any breached license if the breach is not curable or if it is not cured promptly within any applicable cure period.

(d) Notice of Infringement. Reseller will promptly notify Brivo of any actual, threatened or suspected infringement of the Brivo Marks or Brivo's other Intellectual Property Rights relating to the Products, as well as any claims or allegations that the Products infringe the rights of any third party.

(e) Cooperation. Reseller agrees to use reasonable efforts to protect Brivo's Intellectual Property Rights and to cooperate in Brivo's efforts to protect its Intellectual Property Rights. At Brivo's request, Reseller will execute any instruments requested by Brivo to perfect Brivo's or its licensors' exclusive ownership rights in the Intellectual Property Rights relating to the Products.

17. Limited Trademark License. Brivo grants Reseller a non-exclusive, non-transferable license during the Term to use the Brivo Marks to promote and market the Products in the Territory in accordance with any written visual or usage guidelines provided from time to time by Brivo. Reseller will also have the right during the Term to identify to the public that it is an authorized reseller of the Products.

18. Access to Server Content. Reseller acknowledges and agrees that subject to the provisions of Section 14 above (Confidentiality), Brivo will have access to the information and content processed by or residing on the Brivo Servers to the extent necessary to provide Brivo Subscription Services and other services pursuant to this Agreement.

19. General Provisions.

(a) Entire Agreement. This Agreement, its Exhibits, the Warranty Policy and the other documents referenced herein constitute the entire arrangement and understanding between the parties and supersede all prior agreements, negotiations and discussions relating to the subject matter of this Agreement, whether written or verbal. Each party acknowledges that in entering into and performing this Agreement it does not do so on the basis of, and does not rely on any statement or representation or warranty or understanding other than as expressly contained in this Agreement at the date hereof or subsequently included within this Agreement pursuant to an amendment in accordance with Section 19(b).

(b) Amendments and Waivers. In order to be valid, amendments and supplements to this Agreement must be made in writing and signed by both parties; provided, however, that the documents referred to herein, including, without limitation, the Price List, the Warranty Policy, the Privacy Policies, the Brivo Reseller Certification Programs and Reseller Program Guides, are subject to change as provided herein and therein. In no event will any delay, failure or omission of a party in enforcing, exercising or pursuing any right, claim or remedy under this Agreement be deemed as a waiver thereof, unless such right, claim or remedy has been expressly waived in writing.

(c) Notices. Except as otherwise specifically set forth herein, all notices and other communications given or made pursuant to this Agreement will be in writing and will be deemed effectively delivered: (i) if sent by certified or registered S-CON-CTL-BRIVO NA FORM RESELLER AGREEMENT V200527 Page: 8 Dynamic Security Technologies, Inc.

mail, on the date received, (ii) if sent by courier, on the date delivered, (iii) if sent by facsimile, on the date of confirmed electronic transmission, and (iv) if sent by email to Brivo to administration@brivo.com or to Reseller, on the date of confirmed receipt. All notices and communications will be sent to the respective parties in accordance with the contact information set out on the signature page of this Agreement. All notices to Brivo will be sent to the attention of: Legal Department. Either party may change its contact information by delivering written notice to the other party in the manner provided above.

(d) Force Majeure. Brivo will have no liability under this Agreement to the extent that it is delayed, prevented or hindered in performing any of its obligations under this Agreement as a result of a Force Majeure Event. Notwithstanding the foregoing, Reseller may terminate this Agreement effective immediately upon delivery of written notice to Brivo if the period that Brivo is delayed, prevented or hindered from performing its obligations because of a Force Majeure Event is for more than three (3) months.

(e) Headings. Headings are used in this Agreement for convenience only and will not affect any construction or interpretation of this Agreement.

(f) Partial Invalidity. If any provision of this Agreement or the application of it will be declared or deemed void, invalid or unenforceable in whole or in part for any reason, the parties will amend this Agreement in order to give effect to, so far as is possible, the intent of this Agreement. If the parties fail to amend this Agreement, the provision, which is void, invalid or unenforceable, will be deemed deleted and the remaining provisions of this Agreement will continue in full force and effect.

(g) Governing Law; Venue; Jurisdiction. This Agreement will, in all respects, including all matters of construction, validity and performance, be governed by the laws of the State of Maryland, United States (excluding the United Nations Convention on Contracts for the International Sale of Goods), without regard to any conflicts of law principles which may result in the application of the laws of another jurisdiction. Any suit, action or proceeding arising in connection with this Agreement will be brought only in the state or federal courts sitting in the State of Maryland and the parties hereby expressly submit to the exclusive jurisdiction of such courts for the purpose of any such suit, action, or proceeding. The parties hereby irrevocably consent to the service of process in any suit, action or proceeding in said courts by the mailing thereof by registered or certified mail, postage prepaid, to the parties' respective addresses pursuant to Section 19(c) of this Agreement. Each party hereby irrevocably waives any objections which it may now or hereafter have to the laying of venue of any suit, action or proceeding arising out of or relating to this Agreement if brought in Maryland, and hereby further irrevocably waives any claim that any such suit, action or proceeding brought in any such court has been brought in an inconvenient forum.

(h) Assignment and Delegation. Reseller may not assign this Agreement or its rights and obligations hereunder, either in whole or in part, without the prior written consent of Brivo; provided, however, that Reseller may assign its rights under this Agreement in whole to a successor in interest in the event of a sale of all or substantially all of Reseller's assets; provided further that if any such proposed successor is (i) in Brivo's sole discretion, a competitor of Brivo, or (ii) an entity with which Brivo has had a reseller, dealer or other channel partner relationship within the past two years, the provisions of Section 19(i) will apply as if the asset sale were a "Transfer". Further, Reseller may not delegate or subcontract its rights or obligations under this Agreement without the prior written consent of Brivo. Any attempted assignment, delegation or subcontract by Reseller in violation of this Section will be null and void, and will constitute a material breach of this Agreement.

(i) Change of Control. Reseller will comply with the following procedure in the event of any transfer, conveyance or other change in control and/or majority ownership of Reseller (a "Transfer"), including, but not limited to, all Transfers requiring a change in Reseller's federal income tax employer's identification number:

(i) Not less than thirty (30) days prior to the closing or other effective date of the Transfer, Reseller will give Brivo notice of the Transfer. The notice will include a detailed explanation of the nature and circumstances surrounding, and reasons for, the Transfer.

(ii) In the event that the Transfer is to any competitor of Brivo (as determined in the reasonable discretion of Brivo) or to any current or former reseller, dealer or other partner of Brivo, Brivo may elect, within sixty (60) days of the earlier of: (1) the date of receipt of Reseller's notice of such Transfer, or (2) the effective date of the Transfer, to terminate this Agreement by delivering a written notice of termination to Reseller specifying the date of termination.

(iii) Within thirty (30) days after the completion of the closing or other effective date of the Transfer, Reseller will notify Brivo in writing of the Transfer, including any details regarding the successor or change in Reseller's legal entity status.

(iv) Brivo's rights to terminate this Agreement as set forth in this Section are in addition to those set forth elsewhere in this Agreement.

(j) UCITA. THE PARTIES AGREE THAT THE UNIFORM COMPUTER TRANSACTIONS ACT OR ANY VERSION THEREOF, ADOPTED BY ANY STATE, IN ANY FORM ("UCITA"), WILL NOT APPLY TO THIS AGREEMENT. TO THE EXTENT THAT UCITA IS APPLICABLE, THE PARTIES AGREE TO OPT OUT OF THE APPLICABILITY OF UCITA PURSUANT TO THE OPT-OUT PROVISION(S) CONTAINED THEREIN.

(k) Waiver of Jury Trial. THE PARTIES EXPRESSLY WAIVE ANY RIGHT TO A JURY TRIAL REGARDING DISPUTES RELATED TO THIS AGREEMENT.

(l) No Publicity. Neither party shall issue any press release relating to this Agreement or subsequent activities without the prior written consent of the other party.

(m) Government Contracts. The Brivo Applications and related Documentation are "Commercial Items" as defined in 48 C.F.R. 2.101 consisting of "Commercial Computer Software" and "Commercial Computer Software Documentation," as such terms are used in 48 C.F.R. 12.212 and 48 C.F.R. 227.7202, as applicable. Consistent with 48 C.F.R. 12.212 or 48 C.F.R. 227.7202-1 through 227.7202-4, as applicable, the Commercial Computer Software and Commercial Computer Software Documentation are licensed to U.S. Government end users (a) only as Commercial Items, and (b) with only those rights as are granted to all other end users pursuant to the terms and conditions herein. Unpublished rights reserved under the copyright laws of the United States.

(n) Counterparts. This Agreement may be executed simultaneously in two or more counterparts, each of which will be considered an original, but all of which, taken together, will constitute one and the same instrument. The exchange of a fully executed Agreement (counterparts or otherwise) by electronic means will be sufficient to bind the parties to the terms and conditions of this Agreement.

IN WITNESS WHEREOF, the parties have caused this Reseller Agreement to be signed by their duly authorized representatives as of the Effective Date.

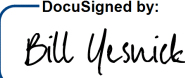
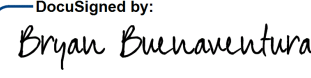
Brivo Systems LLC	Dynamic Security Technologies, Inc.
Bill Yesnick, Vice President of Sales	Name: CEO Title: BRYAN BUENAVENTURA
Name & Title	Name & Title
Signature:  DocuSigned by: D3EE4DD82FD8475... Date: 8/6/2020 12:26 PM EDT	Signature:  DocuSigned by: 9AD2865A3724438... Date: 8/6/2020 9:17 AM PDT
Signature & Date	Signature & Date
Brivo Systems LLC 7700 Old Georgetown Road Suite 300 Bethesda, MD 20814 Phone: 301-664-5242 Fax: 240-965-2210	Dynamic Security Technologies, Inc. 28301 Industrial Blvd Suite B Hayward, California 94545 Phone: (510) 786-1121 Fax:

EXHIBIT A

DEFINED TERMS

The following terms used in the Agreement will have the following meanings:

"Account Data" means collectively, (a) personal information that an End User or its administrators (or Reseller, on behalf of an End User) inputs or uploads into or is otherwise captured in Subscription Services and/or Brivo systems, (b) activity and event data (including video) that is automatically collected by Brivo's services in Brivo's role as a data processor, and (c) personal and business information captured about End Users and their customers, partners or applicants in order to establish or maintain their business relationship with Brivo.

"Brivo API Suite" means any of Brivo's proprietary application programming interfaces.

"Brivo Applications" means, collectively and individually, Brivo's proprietary software programs used by Brivo to provide or operate the Subscription Service(s) over the Internet and Site Licenses, including those Brivo software programs which are centrally hosted and managed by or on behalf of Brivo at the Data Center.

"Brivo Hardware" means the hardware, equipment, parts, components, and accessories manufactured by or on behalf of Brivo, branded with the Brivo Marks and set forth in the Price List.

"Brivo Marks" means the trademarks, service marks, trade names, logos, designs, or slogans used by Brivo to identify the Products, whether or not specifically recognized, registered or perfected under the laws in the Territory.

"Brivo Onair/Access" means Brivo's cloud-based security solution (including the hosted online video recording and storage service component thereof) comprised of certain Brivo Technology, certain Hardware, and System Support Services combined and integrated as a single Product and currently made available by Brivo under the name Brivo Onair®, Brivo Access and any future naming conventions.

"Brivo Onsite" means Brivo's on-site access control solution comprised of certain Brivo Applications, Hardware, and System Support Services and currently made available by Brivo under the name Brivo Onsite®.

"Brivo Partner Portal" means the Brivo hosted website for resellers, as the same may be modified by Brivo from time to time.

"Brivo Servers" means the computer servers located at the Data Center that host and operate the Brivo Applications, Brivo Website, and User Interface.

"Brivo Technology" means, collectively, the applicable Brivo Applications, Brivo Partner Portal, Brivo Servers, Brivo Website, and User Interface used by Brivo to provide the Subscription Service(s).

"Brivo Website" means the Internet website designed, developed, hosted, operated, and maintained by or on behalf of Brivo which is currently located at URL: <http://www.brivo.com>, and any successor or replacement website.

"Confidential Information" means any information disclosed by one party (the **"Disclosing Party"**) to the other party (the **"Receiving Party"**) in connection with this Agreement which is disclosed in writing, verbally or by inspection and is identified as "confidential" or "proprietary" by the Disclosing Party, or which the Receiving Party should have reason to believe is treated as confidential or proprietary by the Disclosing Party. Any information, in whatever form, disclosed by Brivo to Reseller that relates to the Products and that is not publicly known is "Confidential Information." Confidential Information does not include information that: (a) enters the public domain through no fault of the Receiving Party, (b) is communicated to the Receiving Party by a third party under no obligation of confidentiality, (c) has been independently developed by the Receiving Party without reference to any Confidential Information of the Disclosing Party, (d) was in the Receiving Party's lawful possession prior to disclosure and had not been obtained either directly or indirectly from the Disclosing Party, or (e) is required to be disclosed by law, provided the Receiving Party has promptly notified the Disclosing Party in writing of such requirement and allowed the Disclosing Party a reasonable time to oppose such requirement.

"Data Center" means the centralized data processing facilities used by Brivo to provide the Subscription Service(s).

"Derivative Works" has the meaning set forth in the United States Copyright Act.

"Discount Level" means the amount of discount from Brivo's then-current list prices set forth in the Price List applied to licenses or purchases of Products made by Reseller hereunder, unless Brivo provides a separate quote. Discount Levels in effect as of the Effective Date are listed in Exhibit B, which may hereafter be changed by Brivo from time to time in accordance with Exhibit B.

"Documentation" means the then-current user documentation published by Brivo for the Products in the form of manuals and function descriptions in printed or electronic form, as Brivo may modify the same from time to time.

"End User" means any third-party end user to whom Reseller has licensed or resold Products in accordance with the terms and conditions of this Agreement. For the avoidance of doubt, the term "End User" does not include other Brivo resellers or third-party resellers, sub-resellers or distributors.

"Excused Downtime" means any period of unavailability or inoperability caused by a Force Majeure Event.

"Force Majeure Event" means any circumstance or occurrence beyond the reasonable control of Brivo, including, without limitation, acts or omissions by a public authority, acts of God, strikes, blockades, acts of terrorism, riots, storms, earthquakes, explosions, fires, floods, Internet or telecommunications failures/outages/delays, third-party hosting facility failures, denial of service attacks, or other similar occurrences.

"Hardware" means, individually and collectively, the Brivo Hardware and the Third-party Hardware.

"Intellectual Property Rights" means, collectively, any and all: (a) patents and inventions, (b) trademarks, service marks, trade names, trade dress and logos, (c) copyrights, (d) trade secrets, (e) moral rights, and (f) all other intellectual and industrial property or proprietary rights, in each case, whether now existing or created or arising hereafter, in any jurisdiction world-wide.

"Price List" means the then-current list of the Products available for sale by Brivo to Reseller for resale pursuant to the terms and conditions of this Agreement and Brivo's respective standard list prices therefor, as modified by Brivo from time to time. The Price List in effect as of the Effective Date has been provided to Reseller prior to execution of this Agreement and is available to Reseller at the Brivo Partner Portal.

"Products" mean, individually and collectively, the authorized Hardware, Services, Subscription Service(s), Site Licenses, and such other products and services as may be set forth in the then-current Price List from time to time.

"Purchase Order" means a written purchase order from Reseller in a form reasonably acceptable to Brivo which incorporates by reference the terms and conditions of this Agreement.

"Reseller Program Guide" means the document containing a description of various Brivo policies that are related to and referenced within this Agreement, as such document may be modified by Brivo from time to time. The Reseller acknowledges receipt of a copy of the Reseller Program Guide in effect as of the Effective Date prior to execution of this Agreement. The then-current Reseller Program Guide will thereafter be available to Reseller through various means, including at the Brivo Partner Portal.

"Scheduled Maintenance" means any period during which any Subscription Service is unavailable for maintenance, including the implementation of any updates, enhancements, patches, fixes, or error corrections, provided that Brivo provides at least twenty-four (24) hours advance notice of such Scheduled Maintenance (which notice may be provided via the Subscription Service or the Brivo Website).

"Services" means, individually and collectively, the services specified in the Price List (excluding Subscription Services), including, without limitation, System Support Services.

"Site Licenses" means, individually and collectively, licenses for Brivo Onsite (and licenses for any other stand-alone Brivo Applications made available by Brivo from time to time in its discretion for resale by Reseller hereunder).

"Subscription Services" means, individually and collectively, Brivo Onair, Brivo Access, Brivo API Suite, and any additional hosted software services made available by Brivo from time to time in its discretion for resale by Reseller hereunder).

"System Support Services" means the maintenance and support services made available by Brivo, at the prices set forth in the Price List.

"Territory" means the geographic areas and/or markets listed in Exhibit B, as hereafter amended by the parties from time to time.

"Third-party Hardware" means the third-party hardware, equipment, parts, components, and accessories sold but not manufactured by Brivo set forth in the Price List.

"User Interface" means the web page or applications designed, developed, hosted, operated, and maintained by or on behalf of Brivo, which will serve as the portal for Subscription Service End User account access and use.

EXHIBIT B

- 1) **Price List:** The Reseller acknowledges receipt of a copy of the Price List in effect as of the Effective Date prior to execution of this Agreement. The then-current Price List thereafter will be available to Reseller through various means, including at the Brivo Partner Portal. The prices in the Price List are in the local currency for the Territory and, unless otherwise specified by Brivo, all payments hereunder will be made in that currency.
- 2) **Territory: Territory means:** *Northern CA, primarily the SF Bay Area*
- 3) **Pricing and Discount Levels:** The Reseller Discount Levels listed below shall be taken off the standard list prices set forth in the then-current Price List at the percentages indicated for each Product category (Product categories are also identified in the then-current Price List) in accordance with the table below.

Reseller Discount Level Schedule

Reseller Type	Category A Product Discount Level	Category B Product Discount Level	Category C Product Discount Level	Category D Services Discount Level	Category E Services Discount Level
Level 1	40%	40%	25%	40%	0%

- a) **Volume Based Discounts:** Existing Resellers are assigned to the appropriate Discount Level annually (the "**Annual Discount Reset**") in January of each calendar year based on their total prior year direct purchase activity (including both Hardware and Subscription Services) with Brivo. Resellers will then remain at this Discount Level until the next Annual Discount Reset (at which point the Discount Level may remain the same, or be adjusted up or down depending on the prior year level of direct purchase activity) or until an Interim Discount Upgrade (as defined below) is earned. During each calendar year, Resellers are considered for an upgrade to the next Discount Level once calendar year-to-date purchases (and timely payments) have been verified after each month (the "**Interim Discount Upgrade**"). The new Discount Levels, if earned, will generally be assigned to the Reseller by the end of the following month. This new Discount Level will be effective for the remainder of the current calendar year and for the following calendar year, until the Annual Discount Reset (based on the following calendar year activity) is established or another Interim Discount Upgrade has been earned. Notwithstanding the foregoing, assignment of a Reseller's Discount Level remains at the sole discretion of Brivo and can be altered at any time. Resellers must maintain and satisfy the general conditions of the Reseller Agreement at all times.
- b) **Example Upgrade:** A Reseller at Discount Level 1 achieving Level 2 status based on (1) year-to-date purchases through May 31st and (2) is current on all outstanding invoices and has been timely throughout the year-to-date period, will be upgraded to Level 2 effective the first of the following month (June 1st).

EXHIBIT C

BRIVO SUBSCRIPTION SERVICE GENERAL TERMS AND CONDITIONS

Minimum Subscription Term; Activation and Deactivation. Each End User account must have a minimum initial subscription period of one year from the date of activation of the first Brivo-enabled device used with such service. Reseller purchases a subscription Service account for resale to an End User by creating a password-protected account for such End User via the Brivo Partner Portal and activating a Brivo-enabled Hardware component (e.g. door equipped with a reader or control panel) for use with such account. The subscription period begins upon activation of the first Brivo-enabled Hardware component to be used with such account. By activating a Brivo-enabled Hardware component to an account, Reseller agrees to pay the applicable monthly subscription fees therefor and for the minimum subscription period therefor as set forth in the then-current Price List, in accordance with the terms and conditions of this Agreement. Reseller may add subsequent Hardware components to an account. Activation of any additional Hardware component to an account constitutes Reseller's agreement to pay the applicable additional monthly service fees therefor for any applicable minimum subscription period. Brivo reserves the right to suspend or cancel a Subscription Service in the event Reseller fails to pay for such service in accordance with the terms and conditions of this Agreement. Following the expiration of the applicable minimum initial subscription period, Reseller may deactivate an account by notifying Brivo in writing at least thirty (30) days in advance of the requested deactivation date.

Subscription Billings. Brivo Subscription Services are billed each month in advance based upon the services being consumed as measured at 12:01am on the first day of that month. For example, if your customer has six doors on line on October 1st, your October invoice will reflect a full month of charges for six doors. Any partial-month or prorated charges will be invoiced in the month following the added services (e.g.: new doors) and/or service changes (e.g.: increased camera storage duration) made during the month. For example, if you add two doors on October 5th, the November bill for that account will reflect the pro-rated amount for October (October 5th through October 31st) and the full amount for the month of November. If no other additions or service changes are made in November, then the December invoice will effectively decrease, reflecting only the monthly charges for December without any prorated portion for prior month additions or service changes.

Prorated Billings. Prorated amounts are calculated by multiplying the cost per day of the applicable monthly subscription by the number of chargeable days. Prorated subscription amounts are invoiced in the month following the month of activation. Cost per day is determined by dividing the monthly subscription charge by the number of days in the month in which the services were activated. For example, if there are 30 days in a month and the subscription charge is \$30 per month, then the cost per day is \$1. Chargeable days are calculated by adding a five (5) day grace period to the date when services were activated (e.g., new door, new camera) and subtracting that from the number of days in the month. For example, devices are added on the 15th day of a 30-day month. Billing starts from the 20th day leaving 10 prorated days to be billed. The prorated amount is calculated by multiplying the cost per day by the number of chargeable days. Example; \$1 x 10 days = \$10 prorated charge. The prorated amount is then added to the following months invoice along with the full charges for that month. For example, \$10 of prorated charges, plus \$30 dollars for the full month subscription equals a bill of \$40 for the month after the services were initiated.

End User Access. End Users will access and use the Subscription Service subject to the terms and conditions established therefor by Brivo and set forth in the applicable Terms of Use in the form provided within the Subscription Service or at the Brivo Website. End Users will access and use the Subscription Service via the User Interface provided by Brivo.

Availability. During the Term of this Agreement, Brivo will use commercially reasonable efforts to maintain 99.9% Availability for the Brivo service, calculated per calendar quarter, where "**Availability**" is calculated as follows: **Uptime/(Uptime+Downtime)=Availability**, where "**Uptime**" means the time the Brivo service is available, and includes any period during which the Brivo service is unavailable for Scheduled Maintenance and Excused Downtime and "**Downtime**" means the time the Brivo service is not available, other than due to Scheduled Maintenance and Excused Downtime.

Sole and Exclusive Remedies. Should Brivo fail to achieve 99.9% Availability for the Brivo service in a calendar quarter, as Reseller's sole and exclusive remedy, Reseller may request from Brivo in writing a credit on Reseller's account in an amount equal to one full day of subscription fees for each active and affected Brivo End User account subscription maintained by Reseller in that quarter, for each full or partial hour of Brivo service unavailability below the percentage specified above.